

		sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties under a written instrument and requests that these rights and duties be adjudged by the court.” (<i>Maguire v. Hibernia Savings & Loan Soc.</i> (1944) 23 Cal.2d 719, 728.) Here, Ms. Smith’s request for declaratory relief is duplicative of and entirely coextensive with the second cause of action, which, as discussed previously, fails as a matter of law. (See <i>Stockton Citizens for Sensible Planning v. City of Stockton</i> (2012) 210 Cal.App.4th 1484, 1500 [declaratory relief derivative of barred claims fails as a matter of law]; <i>Roman v. BRE Properties, Inc.</i> (2015) 237 Cal.App.4th 1040, 1055, n. 12 [same].) Pacific Sands shall give notice of this ruling.
7	Nemmer vs. Renegade RV	Plaintiffs Richard Nemmar’s and Kathleen Nemmer’s motion for attorney’s fees, costs, and expenses is GRANTED in part and DENIED in part. The court awards Plaintiffs a total fees, costs, and expenses award of \$30,453.81, consisting of \$25,710 in attorney fees plus \$4,743.81 in costs, to be paid by Defendant Rev Renegade, LLC only. <u>Legal Standard for Attorney Fee Awards</u> On a motion for attorney’s fees, the moving party has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) The Song-Beverly Act provides for the recovery of attorney’s fees, costs, and expenses. (Civ. Code, § 1794(d).) Courts use the lodestar adjustment method to determine the amount of attorney’s fees to award in Song-Beverly actions. (<i>Reynolds v. Ford Motor Co.</i> (2020) 47 Cal.App.5th 1105, 1112.) “[T]he lodestar is the basic fee for comparable legal services in the community.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132.) It is “based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.’ [Citation.] [The California Supreme Court] expressly approved the use of prevailing hourly rates as a basis for the lodestar... In referring to ‘reasonable’ compensation, [the Court] indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation. (<i>Id.</i> at 1131-1132.) When determining a reasonable attorneys’ fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party’s attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998; see also <i>Environmental Protection Info. Ctr. v. California Dep’t of Forestry & Fire</i>